

Prema Devi v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 August 2026 · Writ-C No. 21747 of 2026 · **Writ disposed of; mandamus to generate one domestic bill without surcharge**

HEADNOTE

On the licensee's admission that a 1 kW domestic-load consumer was kept under commercial category until 31 December 2019, the High Court issued mandamus in terms of the prayer: generate one bill from 31 March 2010 to date on the readings of all meters, treating the connection as domestic and without surcharge, giving the benefit of clause 6.5(b)(i) of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, a 1 kW domestic consumer of Purvanchal Vidyut Vitran Nigam, alleged her connection was wrongly billed as commercial. She asked for one bill from 31 March 2010, when the last bill was fully paid, to date, on the readings of all removed meters and the current meter, as domestic and without surcharge. A 29 March 2025 communication and the licensee's counter admitted that, though the load was domestic 1 kW, the connection remained categorized as commercial until 31 December 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

Admitted commercial billing of a domestic-load connection — single bill without surcharge

HOLDING

Where the licensee admits that a consumer with domestic-category load was kept under commercial categorization, the Court will order generation of one bill from the last fully-paid date to date on the readings of all meters, treating the connection as domestic and without surcharge, giving the benefit of clause 6.5(b)(i). Compliance within three weeks of communication of a certified copy to the Executive Engineer. ¶ 2-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On the licensee's admission that a 1 kW domestic-load consumer was kept under commercial category until 31 December 2019, the High Court issued mandamus in terms of the prayer: generate one bill from 31 March 2010 to date on the readings of all meters, treating the connection as domestic and without surcharge ¶ 2-4